

# **POWER PURCHASE AGREEMENT HYBRID OFFSHORE WIND + GUARANTEES OF ORIGIN PROJECT DOGGER BANK D — UNITED KINGDOM**

THIS POWER PURCHASE AGREEMENT (this "Agreement") is made and entered into on 14 March 2026 (the "Execution Date"), by and between:

(1) NORTH SEA WIND HOLDINGS LIMITED, a private limited company incorporated under the laws of England and Wales (registered number 14882016), whose registered office is at 5 Aldermanbury Square, London EC2V 7HR ("Seller");  
and

(2) BRITISH GREEN UTILITIES PLC, a public limited company incorporated under the laws of England and Wales (registered number 00226600), whose registered office is at 1 Finsbury Avenue, London EC2M 2PA ("Buyer").

Buyer and Seller may individually be referred to as a "Party" and collectively as the "Parties".

## **ARTICLE 1 — DEFINITIONS AND INTERPRETATION**

In this Agreement, the following terms have the following meanings:

"ACQ" or "Annual Contract Quantity" means an aggregate volume of 3,500,000 MWh of Net Electrical Energy in any Contract Year, subject to adjustment in accordance with Schedule 4.

"As-Generated Profile" means the half-hourly metered output of the Facility delivered to the Delivery Point.

"Commercial Operations Date" or "COD" means 1 October 2027.

"Contract Year" means each successive 12-month period starting on the Commercial Operations Date.

"Delivery Point" means the high-voltage busbar at the National Grid Electricity Transmission substation at Creyke Beck B (Grid Reference SE 982 411).

"Facility" means the 1,200 MW offshore wind farm at Dogger Bank Zone D, comprising up to 92 turbines of 14 MW nameplate capacity each, the associated array cables, two HVDC offshore platforms and the export cable to Creyke Beck B.

"GoO" means a Guarantee of Origin issued under the Renewable Energy Guarantees of Origin (REGO) scheme administered by Ofgem.

## **ARTICLE 2 — SALE AND PURCHASE**

2.1 Sale of Energy. Seller shall sell to Buyer, and Buyer shall purchase from Seller, 100% of the Net Electrical Energy generated by the Facility on a pay-as-produced basis, up to the ACQ in each Contract Year, throughout the Term.

2.2 Sale of GoOs. Seller shall transfer to Buyer one (1) GoO for every megawatt-hour of Net Electrical Energy delivered. GoO transfer shall occur within ten (10) Business Days of the end of each calendar month, via the Ofgem REGO registry to a Buyer-nominated account.

2.3 Bundling. The energy and the corresponding GoOs are bundled and shall be settled together; neither Party shall sell either component to a third party except as expressly permitted in Article 16.

## **ARTICLE 3 — PRICING AND PAYMENT**

3.1 Energy Price. The price payable by Buyer for each MWh of Net Electrical Energy delivered shall be the greater of:

- (a) the Strike Price of GBP 47.85/MWh (real 2026 prices, indexed annually to UK CPI per Schedule 2); or
- (b) the day-ahead N2EX hourly auction settlement price for the relevant settlement period.

A floor mechanism of GBP 32.00/MWh applies under negative-pricing periods (System Length); see Article 7.

3.2 GoO Price. GoOs are priced at GBP 4.50 per certificate during Years 1–5, escalating to GBP 6.00 per certificate from Year 6 to end of Term, plus annual UK CPI adjustment.

3.3 Capacity Payment. In addition to the variable energy and GoO prices, Buyer shall pay a fixed capacity charge of GBP 1,800,000 per month, payable monthly in arrears, in consideration of Seller maintaining a guaranteed availability of 95% measured on a rolling twelve-month basis.

3.4 Invoicing. Seller shall issue an invoice on the fifth (5th) Business Day of each month showing (a) energy delivered and price, (b) GoOs transferred and price, and (c) capacity charge. Buyer shall pay each invoice within thirty (30) calendar days of receipt by electronic transfer to the account designated in Schedule 5.

## **ARTICLE 4 — TERM**

4.1 Initial Term. This Agreement shall commence on the Execution Date and shall continue in force for an initial period of fifteen (15) Contract Years from the Commercial Operations Date (the "Initial Term").

4.2 Extension Option. Buyer shall have a unilateral right to extend the Term by an additional five (5) Contract Years on the same commercial terms by notice given to Seller no later than 24 months prior to the expiry of the Initial Term.

## **ARTICLE 5 — VOLUME COMMITMENT AND CALL OPTION**

5.1 Take-or-Pay. Buyer commits to a Take-or-Pay obligation of 80% of the ACQ in each Contract Year. Any shortfall below 80% shall give rise to a deficiency payment equal to the Strike Price multiplied by the volume below the 80% threshold.

5.2 Make-Up Rights. Take-or-Pay deficiency payments paid in any Contract Year may be applied as credit against MWh purchased in excess of 100% of ACQ in any of the subsequent three (3) Contract Years.

5.3 European Call Option on Excess Volume. Buyer holds a European call option to purchase up to an additional 500,000 MWh per Contract Year, exercisable on the second-to-last Business Day of each Contract Year, at a strike price equal to the prevailing N2EX forward price for delivery in the next Contract Year minus GBP 5.00/MWh. Premium for this option is GBP 1,250,000 payable within 30 days of the Commercial Operations Date and annually thereafter.

## **ARTICLE 6 — DELIVERY AND METERING**

6.1 Delivery. Seller shall deliver Net Electrical Energy at the Delivery Point on a continuous basis. Title and risk of loss

transfer at the Delivery Point.

6.2 Metering. The Facility's main and check meters shall comply with Balancing and Settlement Code (BSC) requirements. Seller shall provide read-only access to half-hourly metering data to Buyer.

## **ARTICLE 7 — CURTAILMENT AND COMPENSATION**

7.1 Permitted Curtailment. Seller may curtail output in response to (a) instructions from the National Electricity System Operator ("NESO"); (b) physical safety constraints; (c) maintenance properly notified.

7.2 Curtailment Compensation. For any curtailment instructed by NESO that results in lost generation, Seller shall be entitled to "deemed energy" payment equal to the Strike Price multiplied by the volume foregone, capped at 5% of ACQ per Contract Year. Compensation above the cap is at Seller's risk.

## **ARTICLE 8 — CHANGE OF LAW**

8.1 Definition. "Change of Law" means any new or amended UK statute, statutory instrument, regulation, code, license, or binding tribunal decision adopted after the Execution Date that materially impacts a Party's rights, obligations or economics under this Agreement, including any change to the REGO scheme, Contracts for Difference regime, Renewables Obligation, BSUoS recovery, the UK ETS or carbon floor price.

8.2 Allocation. The economic burden of any Change of Law shall be shared 50/50 between the Parties unless the Change of Law specifically applies to Seller in its capacity as a generator (in which case Seller bears 100%) or to Buyer in its capacity as a supplier (in which case Buyer bears 100%). Either Party may invoke this clause within 90 days of the Change of Law.

## **ARTICLE 9 — FORCE MAJEURE**

9.1 Definition. "Force Majeure" means any event or circumstance beyond the reasonable control of the affected Party including, but not limited to: acts of God, severe weather ( $\geq$  once-in-50-year events), war, terrorism, civil disturbance, fire, explosion, strike (other than involving the affected Party's own workforce), pandemic declared by the UK Government, expropriation, and regulatory prohibition.

9.2 Effect. Performance obligations affected by a Force Majeure event are suspended for the duration of the event. The Parties shall use commercially reasonable efforts to mitigate the impact.

9.3 Termination for Prolonged FM. If a Force Majeure event continues for more than 365 consecutive days, either Party may terminate this Agreement on 30 days' notice without further liability.

## **ARTICLE 10 — TERMINATION**

10.1 Termination Events. Either Party may terminate this Agreement on the occurrence of any of the following:

(a) failure to pay an undisputed amount within sixty (60) days of receipt of written notice of overdue payment;

- (b) any Insolvency Event of the other Party;
- (c) abandonment by Seller of operations of the Facility for more than 180 consecutive days;
- (d) prolonged Force Majeure under Article 9.3;
- (e) a final, unappealable order of a UK court declaring this Agreement illegal or unenforceable.

10.2 Buyer Discretionary Termination. Buyer may terminate this Agreement for convenience after the seventh (7th) Contract Year on twenty-four (24) months' prior written notice, on payment of a termination fee equal to the discounted present value of two (2) Contract Years' Capacity Payments (discount rate: UK 10-year gilt yield + 200 basis points).

## **ARTICLE 11 — PERFORMANCE GUARANTEES**

11.1 Availability Guarantee. Seller guarantees a rolling-12-month energy availability of not less than 95% (the "Availability Threshold"). Availability shall be calculated as actual energy delivered divided by Theoretical Maximum Energy, excluding only Permitted Curtailment.

11.2 Liquidated Damages. If average rolling-12-month availability falls below 95% in any month-end measurement, Seller shall pay Buyer liquidated damages of GBP 25,000 per percentage point per month, capped at GBP 2,500,000 in any Contract Year.

11.3 Capacity Factor Floor. If, in any rolling-24-month period, the realised net capacity factor of the Facility falls below 38%, Buyer may invoke the price renegotiation provision in Schedule 6.

## **ARTICLE 12 — INSURANCE**

12.1 Required Coverage. Throughout the Term Seller shall maintain (a) all-risks property insurance not less than full replacement value, (b) third-party liability insurance of not less than GBP 250,000,000 per occurrence, (c) marine insurance for the offshore equipment, and (d) Directors & Officers insurance.

12.2 Buyer Named Insured. Buyer shall be named as additional insured on policy (b). Certificates of insurance shall be furnished to Buyer within 30 days of the Execution Date and on each renewal.

## **ARTICLE 13 — INDEMNITIES**

13.1 Seller Indemnity. Seller shall indemnify Buyer against any claim, loss, damage or expense arising from (a) the negligent or wilful misconduct of Seller or its contractors, (b) breach of any representation or warranty by Seller, (c) any environmental contamination caused by the Facility.

13.2 Buyer Indemnity. Buyer shall indemnify Seller against any claim, loss, damage or expense arising from (a) the negligent or wilful misconduct of Buyer or its contractors, (b) breach of any representation or warranty by Buyer.

13.3 Liability Cap. Aggregate liability of either Party arising under this Agreement shall not exceed an amount equal to one (1) Contract Year's Capacity Payments (GBP 21,600,000), excluding liability for fraud, wilful misconduct, or breach of confidentiality.

## **ARTICLE 14 — DISPUTE RESOLUTION**

14.1 Negotiation. The Parties shall first attempt to resolve any dispute by good-faith negotiation between senior executives within thirty (30) days of written notice of the dispute.

14.2 Arbitration. If negotiation fails, the dispute shall be finally resolved by arbitration under the LCIA Rules. The seat of arbitration shall be London. The number of arbitrators shall be three (3). The language shall be English.

14.3 Governing Law. This Agreement is governed by and construed under English law.

## **ARTICLE 15 — CONFIDENTIALITY**

15.1 Each Party shall maintain in confidence all non-public information received from the other Party in connection with this Agreement and shall not disclose any such information to any third party for a period of seven (7) years from receipt, except as required by law, by an order of a competent regulator, or by the listing rules of a recognised stock exchange.

## **ARTICLE 16 — ASSIGNMENT**

16.1 Restrictions. Neither Party may assign or transfer any right or obligation under this Agreement without the prior written consent of the other Party (not to be unreasonably withheld).

16.2 Permitted Assignments. Without prejudice to Article 16.1, either Party may assign this Agreement (a) to an Affiliate of investment-grade credit standing, or (b) by way of security to its project finance lenders.

## **SCHEDULE 1 — KEY MILESTONES AND NOTIFICATION DATES**

**Execution Date 14 March 2026**

**Financial Close Long-Stop Date 30 September 2026**

**Construction Commencement Long-Stop 31 March 2027**

**Commercial Operations Date (target) 1 October 2027**

**Commercial Operations Date (long-stop) 1 January 2028**

**First-year extension exercise notice 24 months pre-end**

**Annual REGO registry transfer First 10 BD of month**

**Insurance renewal anniversary 1 April yearly**

**Quarterly performance review Last BD of each Q**

**Mid-term commercial review Year 8 anniversary**

**Buyer convenience-termination eligibility From Year 8 anniversary**

**CPI escalation true-up 1 January annually**

**GoO price step-up Year 6 anniversary**

**Term expiry (Initial Term) 30 September 2042**

## **SCHEDULE 2 — CPI INDEXATION FORMULA**

$P(\text{year } n) = P(\text{year } n-1) \times (1 + \text{CPI}(\text{year } n-1))$ , where  $\text{CPI}(\text{year } n-1)$  is the average annualised UK CPI rate for year  $n-1$  published by the Office for National Statistics, capped at +5% and floored at -2%.

## **SCHEDULE 3 — DELIVERY PROFILE AND EQ-PROFILE ADJUSTMENT**

The As-Generated Profile is the contractual profile. If Buyer requests a Baseload Profile equivalent, an "Eq-Profile Adjustment" of GBP 2.50/MWh is added to the price, in line with Buyer's internal hedging desk procedures.

#### **SCHEDULE 4 — ACQ ADJUSTMENT**

ACQ may be increased by mutual agreement upon completion of any expansion project at the Facility (e.g., addition of energy storage or further turbines). ACQ may be decreased only if a permanent forced derating is certified by an Independent Engineer.

#### **SCHEDULE 5 — PAYMENT BANK DETAILS**

[Redacted for confidentiality. Provided separately under confidential cover.]

#### **SCHEDULE 6 — PRICE RENEGOTIATION TRIGGER**

If, in any rolling-24-month period, the realised net capacity factor of the Facility falls below 38%, the Strike Price for the following Contract Year shall be reduced by 5%; if below 35%, by 10%. Both Parties shall enter good-faith negotiations within thirty (30) days of triggering.

#### **EXECUTION**

IN WITNESS WHEREOF the Parties have executed this Agreement on 14 March 2026.

For NORTH SEA WIND HOLDINGS LIMITED: /s/ A. Patel, Director  
For BRITISH GREEN UTILITIES PLC: /s/ R. Khan, Chief Executive